

datum regis), as contrary to the tenor of Magna Carta—an effective contention as a political expedient, but unsound in law.

CHAPTER FORTY.

NULLI vendemus, nulli negabimus, aut differemus, rectum aut justiciam.

To no one will we sell, to no one will we refuse or delay, right or justice.

This chapter, like the preceding, has had much read into it that would have astonished its framers: application of modern standards to ancient practice has resulted in complete misapprehension. The sums customarily received by John, as by his predecessors, at every stage of legal procedure, were not always the wages of deliberate injustice. Many such payments were not bribes to an unjust judge, but merely expedients for hastening the law's delays, or to ensure a fair hearing for a good plea, or to obtain some unusual but not unfair expedient, such as a peculiarly potent writ or the hearing of a case in the exchequer, which would ordinarily have been tried elsewhere. If the royal courts charged higher rates than the feudal courts, they supplied a better article. When Henry of Anjou threw open the doors of his court to all freemen who chose to pay for writs, he found a ready market. These writs differed widely in price. Some from an early date were issued whenever applied for (writs *de cursu*) and at a fixed sum: others were granted only as marks of favour or after a bargain had been struck. Specially quick or cogent procedure had to be specially paid for.

It would thus appear that the system of John was not open to the unqualified and violent condemnation which it usually receives. Hallam's language is too sweeping when he says: "A law which enacts that justice shall neither be sold, denied, nor delayed, stamps with infamy that government under which it had become necessary."¹ In

¹ *Middle Ages*, II. 451.